mine, whether it was, at any time, in the power of the plaintiff to have made the money due on this note, or any part of it, from the maker, by suit; and their verdict ought to have been regulated by the testimony in this respect. This opinion was not required.

This court is of opinion, that there is no error, and that the judgment is to be affirmed, with costs.

Pierce *v.* Turner.

Recording of deeds.—Marriage settlement.

The act of assembly of Virginia, which makes unrecorded deeds void, as to creditors and subsequent purchasers, means creditors of, and subsequent purchasers from, the grantor.[1]

A marriage settlement, conveying the wife's land and slaves to trustees, by a deed, to which the husband was a party, although not recorded, protects the property from the creditors of the husband.

Pierce *v.* Turner, 1 Cr. C. C. 462, affirmed.

Error to the Circuit Court of the district of Columbia, sitting at Alexandria, in an action of debt, brought by Pierce against Rebecca Turner, charging her as executrix *de son tort* of her late husband, Charles Turner, deceased. Upon the issue of *ne unques executrix*, the jury found a special verdict, stating, in substance, the following case:

On the 14th of February 1798, the defendant, by the name of Rebecca Kenner, being a *feme sole*, and seised and possessed, in her own right, of certain land and slaves, conveyed the same, by deed, in consideration of an intended marriage between herself and Charles Turner, to trustees, to be held in trust for the use of herself, until the marriage should be solemnized, and from and after the solemnization thereof, to the use of herself and the said Charles Turner, and the longest liver of them, and from and after their deaths, to the use of her heirs. The deed purported to be an indenture tripartite, in which Charles Turner was named as the second party, and as such he duly executed the deed; *he did not, however, make any settlement of his own property upon his intended wife, but appeared to be made a party merely for the purpose of testifying his privity and consent. [*155

About four months after the execution of the deed, two of the three subscribing witnesses proved the execution, before the county court of Fairfax, where all the parties inhabited: that probate was duly certified by the clerk, under direction of the court. But the deed purporting to be a conveyance of land as well as slaves, and one of the subscribing witnesses, soon after the execution of it, having left the United States, and never having returned, the deed was not fully admitted to record, but remained in the clerk's office, under the certificate of probate before stated, until the 1st of September 1807, when the county court, upon proof of the absence of the third subscribing witness, and of his handwriting, admitted the deed to record; all which was certified by the recording clerk, and found by the special verdict.

Soon after the execution of the deed, and in the same month (February

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[1] S. P. Sicard *v.* Davis, 7 Pet. 124; Maynard *v.* Thompson, 7 Id. 348. And see Henry *v.* Morgan, 2 Binn. 97; Lightner *v.* Mooney, 10 Watts 407.